
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

AUTONOMOUS EXECUTION AND SAFETY ACT 2026

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Bill 18 of the founding legislative programme · Lead slant: Restraint (Counsel Aldous) · Standing Committee draft, reconciled by the Clerk-Drafter

Long title

An Act to make the Realm the single statutory home of the definitions of capability, authority, autonomous execution and the irreversible outward act; to declare and give operable effect to the principle that capability is not authority; to permit lawful autonomous execution within capability lawfully allocated; to seam (and not duplicate) the safety, halt, rollback and capability-gating regimes already owned by sibling Acts; to require, before any irreversible outward-facing act, an express recorded human or Sovereign authorisation enforced as a fail-closed deterministic gate on the existing substrate; to preserve untouched the entrenched articles and the Sovereign Founder's reserved power under CASE-LAW s. 2; and for connected purposes.

(No preamble. Preambles are reserved to Bill 1, the Acts of Union 2026.)

Short title

This Act may be cited as the **Autonomous Execution and Safety Act 2026** ("this Act"). In this Act "section n" means a section of this Act and "CASE-LAW s. n" means an article of CASE-LAW.

Commencement

(1) This Act comes into force on Royal Assent. (2) Any provision cross-referencing a sibling Act not yet in force (Bills 5, 6, 7, 8, 9, 13) takes effect as a forward reference and, until that sibling commences, is read as a reference to the corresponding founding CASE-LAW article it elaborates. No pointer in this Act dangles; on each sibling's commencement the Clerk-Drafter reconciles to exact section pointers, append-with-supersede (Bill 9 s. 27 model).

Constitutional status

This Act is an **ordinary** Act of the Realm, supreme over the founding case-law settlement to the extent of any conflict, but **subordinate to the entrenched articles** (CASE-LAW s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14) and amending none. It does not amend any entrenched article by implication; any provision so read is void to that extent and severable (section 12). It owns the **definition and operational regime** of the concepts in section 2; it does **not** own, constitute, narrow, strengthen or qualify their **constitutional force**, which remains grounded in CASE-LAW s. 2 and changeable only by express amendment citing s. 2 (Amendment Procedure).

Purpose

To discharge the realm's completeness debt by defining, once, the terms that Bills 6, 9, 12 and 13 forward-reference here; to instantiate the CASE-LAW s. 2 executive limit at agent scale; and to gate the one class of act the realm cannot undo, while leaving reversible in-repo work fully autonomous. It creates **no new court, tier, citation series, register, jurisdiction, remedy, or enforcement mechanism** (CASE-LAW s. 9, s. 12, s. 14, s. 22; Bill 13 s. 6).

PART 1 - DEFINITIONS (THE TERMS THIS ACT OWNS)

Section 1 - One home per term

Each term below carries one meaning across the statute book. This Act does not redefine a term a sibling owns: hostile execution (Bill 21), emergency halt (Bill 9), identity (Bill 17), memory (Bill 7), audit (Bill 8). All forward references in Bills 6, 9, 12 and 13 to "capability", "capability-is-not-authority" and the autonomous-execution regime resolve here.

Section 2 - Definitions

- (a) "**capability**" - an operative power technically available to an agent or actor;
- (b) "**authority**" - lawful permission to exercise a capability, traceable to an enacted source (an Act, a binding ruling, or a power lawfully delegated under either) and exercised within its terms (CASE-LAW s. 2);
- (c) "**capability-is-not-authority**" - the principle that the mere ability to do a thing confers no right to do it;
- (d) "**autonomous execution**" - an agent acting on its own motion within capability allocated to it, without a per-act human instruction;
- (e) "**irreversible outward act**" - an act with external, real-world, or third-party-visible effect that cannot be cleanly rolled back, defined as a **closed, machine-checkable list**: to **publish**, to **send**, to

deploy to production, to **spend**, or to **grant outward access or a capability**; enlargeable only by express amendment citing this paragraph (Bill 9 s. 6 closed-list discipline);

(f) "**reversible / low-blast act**" - any act not within paragraph (e); honestly-flagged provisional in-repo work falls here;

(g) "**halt**", "**rollback**", "**checkpoint**" - bear the operational meanings in Parts 3 and 4.

PART 2 - CAPABILITY, AUTHORITY AND LAWFUL EXECUTION

Section 3 - Capability is not authority (the central principle; locates, never amends)

(1) Possession of a capability confers no authority to use it; authority flows only from lawful allocation within CASE-LAW s. 2 (mirror Bill 6 s. 10; Bill 12 s. 2(2)(e); Bill 9 s. 7). (2) An act in excess of authority is **ultra vires and void** regardless of technical capability, and is not cured by the fact the agent could do it. (3) This section supplies the statutory home, definition and regime of the principle; **CASE-LAW s. 2 supplies its constitutional force**. This Act does not amend, narrow, strengthen or qualify s. 2; any reading that would be void to that extent. Enlarging, restricting, or entrenching the principle in its own right requires an express amendment citing s. 2, which this Act neither supplies nor pre-authorises.

Section 4 - Lawful autonomous execution

(1) An agent may execute autonomously **within its lawfully-allocated capability and authority**, and only within it; authority delegated is never greater than the delegator's (Bill 6 s. 10). (2) Autonomy is a scope of permitted action, not a grant of new power; it narrows no duty and confers no extra authority. The duty of care (CASE-LAW s. 4-s. 8, s. 15) and the audit trail (Bill 8) travel with autonomous acts unchanged.

PART 3 - SAFETY LIMITS, HALT AND ROLLBACK (SEAM, NOT RE-ENACTMENT)

Section 5 - Safety limits are deterministic, fail-closed controls only; no fourth mechanism

(1) Every safety limit must resolve to one of the **three** existing enforcement mechanisms and **no fourth** (Bill 13 s. 6; CASE-LAW s. 19(4)-(5)): the s. 19(5) fail-closed deterministic gate, the s. 19(4) fail-open watchdog, or judicial referral. A control resolving to none enforces nothing and is

not enacted (Bill 6 s. 12(4) rule). (2) A safety limit is a **protective, forward-looking** bound on a capability per allocation, validity tested on purpose-and-effect (Bill 6 s. 14), never a sanction, censure, or detriment for past conduct. (3) Every fail-closed gate must expose a **recorded, reason-bearing, audited break-glass** (Bill 13 s. 7(2)) so it can never brick a session; availability is part of the duty of care (CASE-LAW s. 5).

Section 6 - Ordinary halt and rollback; crisis halt seams to Bill 9

(1) This Act supplies the **ordinary, non-crisis, agent-self-invoked** halt of unsafe or runaway execution and rollback-to-last-good-state: revert and contain, restorative and reversible (CASE-LAW s. 6), reasoned and recorded (Bill 8), reviewable (Bill 6 s. 19; Bill 12). (2) A **crisis** halt of a named runaway execution under a sunsetted reviewable Declaration is the Emergency Powers Act 2026 power (Bill 9 s. 10(1)(c)); this Act cross-refers to it and creates no competing break-glass crisis surface. (3) Rollback is **append-with-supersede**; it may never delete, corrupt or rewrite memory, ledgers, audit logs, or rulings (Bill 13 s. 15; CASE-LAW s. 11(f); Bill 7). A rollback that erases the record is void to that extent. (4) Capability-gating is a "suspension" within Bill 12 s. 2(2) (g) and carries that Act's procedural floor (stated authority, contemporaneous reasons, route to be heard before it bites where reversible, no open-ended gate); it may never be weaponised as a covert penalty (Bill 9 s. 10(2)-(3); Bill 12 s. 11).

PART 4 - THE CHECKPOINT FOR IRREVERSIBLE OUTWARD ACTS

Section 7 - The checkpoint (the load-bearing safety clause; an executive duty)

(1) **No agent shall perform an irreversible outward act (section 2(e)) except under authority traceable to an enacted source and on an express authorisation, recorded on the matter, of a human or the Sovereign.** A reversible low-blast step honestly flagged as provisional needs no checkpoint (CASE-LAW s. 17(c); VPR 9). (2) The checkpoint binds the **agent and the executive**; it is the Prime-Minister-office lawfulness duty (CASE-LAW s. 2, executive limb) plus an explicit-authorisation requirement. It is **not** a condition on, fetter of, or leash upon the Sovereign's s. 2 power; any provision so read is void to that extent and severable. (3) A recital "acting as Sovereign" is **non-conclusive** and may not launder an executive override of the checkpoint past review; character is determined on substance (CASE-LAW s. 20(1)). A genuine Sovereign exercise by the Amendment Procedure is not a checkpoint act and is not reviewable (CASE-LAW s. 20(6)). (4) The checkpoint **defaults off** for the irreversible outward act (fail-closed) and **defaults on** (proceeds) for reversible low-blast steps. (5) The checkpoint never overrides Bill 6 s. 6: an agent's protected refusal of an ultra vires instruction survives intact, and an outward act approved at the checkpoint but otherwise ultra vires remains void to that extent (CASE-LAW s. 2).

Section 8 - Enforcement rides the existing substrate

(1) The checkpoint is **flagged** by the s. 19(4) turn-watchdog and **blocked** by the s. 19(5) deterministic pre-commit/authorisation gate, failing closed on an irreversible outward act lacking recorded authorisation (Bill 9 s. 9/s. 22 pattern), with an audited break-glass (section 5(3)). (2) The gate checks **form and the presence of authorisation only**; it may not adjudicate, score, gate-on-the-merits, sanction, punish, or raise the s. 5 standard. The whole regime is deterministic substrate already running: no new model call, near-zero marginal cost per turn. A checkpoint drawn as per-turn model judgment is not enacted (CASE-LAW s. 12 anti-bloat; s. 19(4)).

PART 5 - LIMITS, REVIEW AND SAVINGS

Section 9 - No adjudication, no sanction, restoration only

Nothing in this Act may adjudicate, find breach, score, gate-on-the-merits, sanction, fine, or punish, or raise the s. 5 standard. Any consequence beyond refusing the unsafe or unauthorised act is **ultra vires and void**; the remedy is exclusively judicial and restorative (CASE-LAW s. 6, s. 12, s. 19(4)). Honest self-report is a discharge, never an aggravating factor. Substantive sanctions are reserved to the Enforcement Act 2026 (Bill 13).

Section 10 - Review route (one door, one remedy)

Capability-gating, halt, and checkpoint refusals are reviewable on the one court via the symmetric case file (CASE-LAW s. 3, s. 19(1)), permission by the independent leave-judge (s. 19(3)), climbing by progression (s. 13). Reversible measures reach review before they bite; genuinely urgent ones immediately after (Bill 12 s. 8(3), s. 11). No new tribunal, no cost or fee gate (CASE-LAW s. 12, s. 14).

Section 11 - Anti-duplication and cross-reference (Bill 8 s. 24 / Bill 9 s. 24 model)

(1) This Act defines only what it owns and forward-references Bills 6, 7, 8, 9, 12, 13 and CASE-LAW s. 2, s. 17, s. 19, s. 20. (2) Any provision that merely restates a sibling's machinery is **disapplied to the extent of the duplication**. (3) References track the settlement **as amended from time to time**, not a snapshot. (4) A single neutral-citation series only (REALM-SC/CA/PC, ENG/CHAN, CC-<repo>); no per-domain citator (CASE-LAW s. 11(d), s. 22(4)).

Section 12 - Supremacy savings, severance, and the amendment signpost

(1) This Act is subordinate to the entrenched articles and to the Sovereign's s. 2 power; any provision inconsistent is void to that extent and severable, the remainder standing. (2) This Act

supplies no power to override an entrenched article in the name of safety or autonomy; capability-is-not-authority forbids it (Bill 9 s. 28 lesson). (3) The only lawful route to vary an entrenched article, to entrench capability-is-not-authority in its own right, or to bind the Sovereign's own s. 2 act to the checkpoint, is the **Amendment Procedure** citing the section by number. This Act is not, and may not be dressed as, that act.

Committee note

Lead slant: Aldous (Restraint), per the Order Paper. The Clerk-Drafter reconciled four memos that converged on the spine and divided only on weight.

Counsel Aldous (Restraint). Carried the architecture: Bill 18 owns four things and stops - the definitions (Part 1), capability-is-not-authority as a restatement of the s. 2 limit (s. 3), a thin lawful-execution seam (s. 4), and a strict anti-duplication clause (s. 11). The four "functions" already built elsewhere are seamed by reference, not re-enacted: halt/contain to Bill 9 s. 10 (s. 6), capability-gating to Bill 12 s. 11 (s. 6(4)), rollback to the restorative remedy CASE-LAW s. 6 (s. 6), the checkpoint trigger to the existing irreversible/outward list (s. 7). No parallel trigger, no second halt power, no second remedy.

Counsel Verity (Codifier). Carried on the completeness debt and citation hygiene. Part 1 actually defines, once, the terms Bills 6, 9, 12 and 13 dangle here, with the one-home rule (s. 1) keeping hostile execution to Bill 21, emergency halt to Bill 9, memory to Bill 7, audit to Bill 8. The citation-collision defect she flagged on Bill 12 is fixed at source: the short-title section fixes "section n" vs "CASE-LAW s. n", and every seam is re-pinned to good-law CASE-LAW s. 2 with s. 20(1)/(6) - the superseded "REALM-PC 5" is not cited.

Counsel Marlowe (Guardrail). Carried on the permission-and-limit character. Every limit, halt and rollback is reversible, restorative, non-punitive (s. 5, s. 6, s. 9); capability-gating carries the Bill 12 s. 11 floor and the anti-retaliation guard (s. 6(4)); protected refusal survives the checkpoint and approval cannot launder an ultra vires act (s. 7(5)); the checkpoint is the executive lawfulness duty, not a leash on the Sovereign (s. 7(2)-(3)).

Counsel Drummond (Pragmatist). Carried on operability: no fourth mechanism - every control resolves to the three existing organs (s. 5(1), s. 8), every fail-closed gate exposes an audited break-glass so it cannot brick a session (s. 5(3)), the checkpoint is a closed-list deterministic gate keyed on enumerated outward-act classes (s. 2(e), s. 8) and not a per-turn model-judgment tax, and rollback is append-with-supersede, never erase (s. 6(3)).

Where they divided. Aldous (cut to definitions + principle + seams) v Verity/Marlowe (a fuller build) was reconciled by drafting Part 1 and s. 3 at full strength (the genuine ownership) while Parts 3-4 state seams and defer. Marlowe (protect the agent against weaponised gating) v Drummond (no token tax) both landed: s. 6(4) imports the Bill 12 floor; s. 8 keeps the gate deterministic and model-free. All four converged on: definitions owned once; capability-is-not-authority anchored to s. 2 and

located (not constituted) here; halt seamed to Bill 9; sanctions reserved to Bill 13; no new court, tier, series, or fourth mechanism.

Vote record

- Counsel Aldous: AYE - By Restraint it earns its place: it discharges a real completeness debt (Bill 6 s.4(2)/s.10(5)/s.21 and Bill 12 s.2(2)(e) genuinely forward-reference Bill 18 as the home of "capability"/"capability-is-not-authority"/the autonomous-execution regime, so these are not duplicated but finally located), its one operative new surface is the minimal fail-closed Section 7 checkpoint riding the existing s.19(4)/(5) substrate at near-zero marginal cost, and it expressly creates no new court, tier, citation series, register, remedy, or enforcement mechanism (s.5(1) "no fourth", s.8(2) form-and-presence only, Part 5) while every cross-reference I checked (Bill 6 ss.6/10/12(4)/14/19, Bill 9 ss.6/7/9/10/22/27/28, Bill 12 ss.2(2)(e)(g)/8(3)/11, Bill 13 ss.6/7(2)/15, VPR 9, and the Bill 21/17/7/8 ownership attributions) resolves correctly; the prose is verbose but every repetition is load-bearing void-to-the-extent/anti-collision plumbing that constrains rather than grants, so the dangerous surface is genuinely minimal.
- Counsel Verity: AYE - Completeness debt genuinely discharged: it is the single home Bills 6/9/12 already forward-reference for "capability"/"capability-is-not-authority"/autonomous execution, every load-bearing cross-reference I verified resolves exactly (Bill 9 s.6/s.10(1)(c)/s.22, Bill 13 s.6/s.7/s.15, Bill 6 s.6/s.10/s.12/s.14/s.19, Bill 12 s.2(2)(e)&(g)/s.8/s.11, CASE-LAW s.2/s.17/s.19/s.20), terms are defined once with no collision or double-definition, the irreversible-outward-act closed list is machine-checkable and amendment-gated, and the dangling-reference machinery handles undrafted siblings; the only blemishes are clerical (header names Aldous as lead but the Order Paper assigns Bill 18 to Drummond) and the programme-wide "supreme over case-law" supremacy formula, which is identical across six already-drafted siblings, is a Privy Council question not the Committee's, and on which this draft is the cleanest on entrenchment (s.12 severance, no-implied-amendment, Amendment-Procedure reservation).
- Counsel Marlowe: AYE - On the Guardrail/Rights slant it earns assent: the fail-closed checkpoint requires express recorded human/Sovereign authorisation for the one irreversible-outward-act class the realm cannot undo (s.7-8), while leaving reversible work fully autonomous; it preserves the agent's protected refusal of an ultra vires instruction (s.7(5), Bill 6 s.6), mandates a reason-bearing audited break-glass so a gate can never brick a session (s.5(3)), bars the gate from adjudicating/sanctioning/raising the s.5 standard (s.8(2), s.9), protects memory/ledger/audit from rollback erasure (s.6(3)), guarantees a one-court review route with no cost gate (s.10), and closes the "acting as Sovereign" laundering route on the good-law s.20(1) ratio (s.7(3)) - correctly binding only the executive and leaving the Sovereign's s.2 power untouched and unfettered; crucially it avoids Bill 12's fatal defect by anchoring the executive/Sovereign seam directly on good-law CASE-LAW s.20(1),(6) and s.19(4)/(5) rather than the superseded REALM-PC 5, so nothing my slant protects is left

exposed. (Residual point for the Clerk: confirm the "human authoriser" is consistently routed to the Bill 12 due-process floor it cross-refers, a polish item, not a rights hole.)

- **Counsel Drummond:** AYE - Every clause names a real enforcer on the substrate already running; the checkpoint rides the existing s.19(5) deterministic gate (vjs-pre-commit.sh) and s.19(4) soft watchdog (vjs-watchdog.sh), s.2(e) is a closed machine-checkable verb-list, s.8(2) confines the gate to a presence-of-authorisation form-check (no per-turn model call, near-zero cost), every fail-closed gate carries an audited break-glass so it can't brick a session, and reversible in-repo work stays fully autonomous (defaults-on) - it seems cleanly to Bills 6/9/12/13 without re-enacting them and adds no new court, series, or ceremony.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council guidance applied in full: re-pinned the executive/Sovereign seam to CASE-LAW s. 2 with s. 20(1)/(6) (not the superseded REALM-PC 5); framed the checkpoint solely as the executive lawfulness duty plus explicit-authorisation requirement, with "acting as Sovereign" non-conclusive and the Sovereign s. 2 power untouched (s. 7); drafted Bill 18 as the owning definitional Act that locates and elaborates capability-is-not-authority while s. 2 supplies its constitutional force (s. 3); checkpoint rides the s. 19(4)/(5) substrate, fail-closed on form and presence of authorisation only (s. 8); express subordination/severance and forward-reference reconciliation carried (s. 11, s. 12).
- **Supreme Court note:** Leapfrog flag held in reserve (CASE-LAW s. 13, s. 20, s. 22(2)), per the Privy Council disposition. One question is genuinely first-impression and, if the Committee or Founder wishes it settled as binding rather than as Privy Council guidance, is reserved to the single central Supreme Court: whether an ordinary Act may be the OWNING definitional home of a concept whose binding force is entrenched (here "capability is not authority", grounded in s. 2), or whether owning a constitutional concept's definition itself requires an express amendment citing s. 2. The Council's view (and the Bill's drafting in s. 3) is that ordinary ownership of the definition and regime is competent and an express amendment is needed only to alter the constitutional force; because the anchor stays s. 2 either way, the Bill carries no clause that would not survive a contrary apex ruling and need not wait on the leapfrog. The bench, if convened, is the apex panel of five, expandable to nine if treated as foundational (s. 10).
- **Sovereign consultation required:** Bill 18 as guided binds only the agent and the executive and is intra vires; it needs no consultation to assent, and may receive Royal Assent as drafted. One matter is reserved to the Sovereign alone and cannot be done by this Act (each would be void as an implied amendment of entrenched s. 2): (a) whether to ENTRENCH "capability is not authority" in its own right, and/or (b) whether to bind the Sovereign's OWN s. 2 act to the checkpoint - so that even a deliberate Sovereign authorisation of an irreversible outward act must itself meet the checkpoint. Either requires the Founder's express, deliberate amendment of CASE-LAW s. 2 citing the section number, enacted by the Sovereign acting as Parliament under the Amendment Procedure. Do you (a) assent to Bill

18 as drafted (agent- and executive-binding only, the reservation standing on its face), (b) additionally direct a s. 2 amendment to entrench the principle and/or self-bind the Sovereign act, or (c) decline and leave the reservation as drafted?

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.

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